

On April 6, 2026, Petitioner filed a Proof of Service stating a copy of the “Final Award” was served on Respondent. Such is not proof the neutral arbitrator served a signed copy of the award as required by Code of Civil Procedure section 1283.6. Thus, there is still no evidence Arbitrator Silverman served a signed copy of the award to each party of the arbitration as provided in the agreement.

Service of the Petition and Notice of the Hearing – Code of Civil Procedure § 1290.4

Code of Civil Procedure section 1290.4, the statute governing proper service of this motion, states, in pertinent part:

- (a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.
- (b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: ¶ (1) Service within this State shall be made in the manner provided by law for the service of summons in an action.

Pursuant to Code of Civil Procedure section 1290.2, “not less than 10 days’ notice of the date set for the hearing on the petition shall be given.”

Here, the arbitration agreement does not provide the manner of service. *See* Pet., Ex. 4(b). Petitioner personally served Respondent with a copy of the petition on August 7, 2025. *See* Proof of Service of Summons, filed August 13, 2025. Petitioner served the original notice of hearing. Of note, there is no filed notice of hearing for April 16, 2026 (although there is proof of service of the same). Therefore, the Court cannot ascertain if the notice requirements for the hearing have been met.

Based on the foregoing, the motion to confirm the contractual arbitration award has still not conformed to statutory requirements. Therefore, the petition is denied without prejudice.

2. CU0001605 Andrew Alan Johnson vs. Donald Judas

Plaintiff’s motion to compel production of unedited sub rosa and deposition of private investigator is withdrawn from calendar. To the Court’s knowledge, Plaintiff has not filed the instant motion as contemplated in the March 17, 2026, order. In any event, the motion appears moot. Per Defendants, Plaintiff advised Defendants on March 18, 2026 that the motion is no longer necessary because the sub rosa footage was produced to Plaintiff and the private investigator was being produced for deposition.